Brazoria County District Court

Cause No. 2025-CV-0001

David May, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-11-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the occurrence in question. Upon information and belief, Plaintiff failed to keep a proper lookout, failed to yield the right-of-way, and failed to exercise ordinary care while proceeding through the intersection. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff, and Plaintiff may be barred from recovery if that percentage exceeds fifty percent.

Second, the occurrence was caused by the acts or omissions of a third party over whom Defendant had no control and for whom Defendant is not legally responsible. Defendant requests that the trier of fact assign responsibility to all responsible third parties as permitted under Section 33.004.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring treatment expenses that were not reasonable or necessary. Any recovery must be limited accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.